

HOUSE No. 1171

The Commonwealth of Massachusetts

PRESENTED BY:

Colleen M. Garry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act concerning the safety of autistic and alzheimer individuals.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1171

By Representative Garry of Dracut, a petition (accompanied by bill, House, No. 1171) of Colleen M. Garry for legislation to provide insurance coverage for the use of electronic tracking devices to protect the safety of persons with Autism spectrum disorder or Alzheimer’s disease. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1021 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act concerning the safety of autistic and alzheimer individuals.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 118E of the General Laws, as appearing in the 2014 Official Edition, is hereby
2 amended by inserting after section 9C the following section:-

3 Section 9D. (a) Definitions. As used in the section:

4 (i) “Technology-Assisted Tracking Device” shall mean any wearable device that
5 complies with the following imperatives:

6 a) Waterproof and able to function under water (which is a major destination as seen
7 above), compliant with IP66 and IP68 standards

b) Works indoors or under cover (Radio Frequency is the best technology for this), and does not need direct line of sight to the sky (GPS)

c) Not dependent on third-party public communication networks (such as cellular, GSM, GPRS, or similar as these are NOT prevalent everywhere)

d) Wrist or ankle strap needs to be tamper-resistant, but changeable by the caregiver directly

e) System specifics need to avoid false alarms in order not to waste LE and SAR time, and have a patient specific code for each device so as to avoid mistaken identities

(b) A health benefit plan shall provide full coverage, subject to all applicable co-payments, coinsurance, deductibles, and out-of-pocket limits, for insured individuals who are diagnosed by a license physician with dementia, Alzheimer's disease, or Autism spectrum Disorder, to obtain a Technology-Assisted Tracking Device if they or their guardian choose.